

Part 2

General Eligibility Rules

34 What is a SNAP household or assistance unit?

A SNAP household is an individual, or a group of individuals living together, who receive SNAP together. DTA also uses the term “assistance unit.”

The SNAP rules require people who live under the same roof and “*customarily purchase and prepare*” food together to be in the *same* SNAP household. This also means DTA will consider their income in calculating the household benefits. In some cases, people who don’t typically buy and prepare food together still need to be in the same household. [106 C.M.R. §361.200](#). **Question 35 and 36** discuss who must be included in your SNAP household.

In contrast, needs-based cash assistance programs such as TAFDC, EAEDC and SSI, as well as MassHealth, consider who has a *legal responsibility* of persons who live together: spouses to spouses, parents to minor children. The SNAP rules are different.

This is a fundamental concept of the SNAP program, but it can confuse low-income households and advocates because the household rules are different from other needs-based programs.

35 Can I get benefits separately from other people I live with?

It depends! If you typically buy and prepare most of your own food *separately* from your roommates, you should qualify for your own SNAP benefits. If you usually buy and prepare a *majority* of your food with others, you must be in the same SNAP household with them. See [106 C.M.R. §361.200](#). The SNAP household rules are based on the assumption that it costs less money to feed a group of people who share the cost of buying and preparing food.

You are not required to store your food separately or to use a different stove or refrigerator. You are not required to have cooking facilities to qualify for SNAP. You can also get SNAP if you are homeless.

Living with others? If you are sharing an apartment with others, you are *not required* to list your roommates on your SNAP application. That means you do not have to list their names, Social Security Number or other information – *unless* you are buying and preparing most of your

food with them. There are exceptions to this household rule if you are living with a spouse, your children under age 22 *or* your parents if you are under age 22. See **Question 36**.

No money to buy food? Even if you have little or no income to buy your own food, you can still be a separate SNAP household. Many people get food from food pantries or borrow money for food. DTA should only ask for proof of your living situation or how you are getting by if the information you provide appears “questionable.” See **Question 17**.

Example 1: Jane and Steve are roommates who share an apartment. Jane recently lost her job and has no income. She started getting food from a local food pantry. Jane and Steve share some meals together, but also use their own food to prepare food separately. Jane and Steve can be separate SNAP households.

Example 2: Sally is a single mother with one child. She is 25 years old and shares an apartment with her older sister, Rhonda. Sally pays half of the rent. She purchases and prepares the majority of her own food for herself and her child. Sally and her child can be a separate SNAP household from Rhonda.

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

36 Who cannot be a separate SNAP household?

People who live under the same roof – whether or not related – who *purchase and prepare the majority of their food together* must be in the same SNAP household and the income of all household members is counted in the SNAP math.

Additionally, under the federal SNAP rules, some people who live together must be also in the same SNAP household, *even if* they buy and prepare most of their food separately. For example:

- A child under age 22 who lives with their parent(s) or stepparent(s) must be in the same SNAP household as the parent. [106 C.M.R. §361.200\(A\)\(3\)](#).
- A child (other than a foster child) under age 18 who lives with a responsible adult must be in the same household as the adult – regardless of relationship. [106 C.M.R. §361.200\(A\)\(2\)](#). The only exception to this rule is where the adult is not exercising financial support or supervision of that child.
- A married couple who lives together must be in the same household, even if they never share food or meals together. [106 C.M.R. §361.200\(A\)\(1\)](#).

Example 1: Kelly is a single parent, age 20, of a 1-year-old daughter. They

live with her parents who work. Kelly receives TAFDC and WIC benefits for herself and her baby. However, due to her age, Kelly *cannot* get her own SNAP benefits. She and the baby must be part of her parents' SNAP household if they get SNAP, or she must include her parents in her SNAP application. Kelly and her baby are eligible as a separate SNAP household once she turns 22 - if they purchase and prepare their food separately.

Example 2: Katherine is 65 years of age and receives Social Security. She cares for two grandchildren, ages 8 and 12, and receives child support for them. Katherine *cannot* get separate SNAP benefits for her grandchildren because they are minors and she provides financial control and supervision for them.

In **joint custody** situations, the parent who exercises most supervision gets SNAP benefits for child, even if the court order awards custody to the other parent. If equal supervision, the parents decide which parent receives SNAP for the child.

How SNAP and TAFDC rules differ

Teen parents: Although a teen parent aged 18 or older can get her own TAFDC for herself and her baby when living with her parents, the SNAP rules do not allow the teen to get her own SNAP benefits separate from her parents until she turns 22. If her parents do not wish to apply for SNAP, the teen parent cannot get SNAP separately from them.

Kinship families: A grandparent, stepparent, aunt, or other relative can receive separate TAFDC for a dependent child, without being on the TAFDC grant or having their income count for TAFDC. However, for SNAP, a relative who cares for a child under 18 in the home cannot get separate SNAP for that child. They and their income must be included in a case with the child.

See **Questions 43 and 44** on the option to opt out a foster child or foster adult.

Here's a quick summary of the household composition rules:

Scenario	Separate SNAP Household?
Unrelated persons who purchase and prepare most food separately from each other.	YES
Related persons – other than spouses or parents and children under age 22 – who purchase and prepare most food separately .	YES
Spouses who live together. Unmarried parents of children in common who live together.	NO
Persons under 22 years who live at home with their parents. Children under 18 living with adults who supervise them.	NO

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON 5 Online Guide for this section.

37 What if I live with others but I have a disability that makes it difficult to prepare my food?

There are *two* options, even if you are unable to prepare your own meals:

Option 1:

If your disability makes you unable to purchase and prepare your own food, you can get SNAP separately from the people you live with – even if they shop and cook food for you.

This is an option if the food you eat is purchased with *your* income and prepared *for you* separately from the people you live with. However, this option is not available if you live with your spouse or parents (if you are under age 22) and they are doing the cooking and shopping for you.

There are many reasons why people with disabilities have meals prepared separately: Special diets, eating meals at different times from others, or keeping income and living expenses separate from others.

Example: Tom is a 35-year-old disabled adult. He shares an apartment with a roommate, Joe. Because Tom is unable to buy and cook his own food due to his disability, Tom gives Joe money each month to buy his food and Joe prepares it. Sometimes they share a meal, but the majority of the food Tom eats is purchased with his own money and prepared separately. Tom qualifies for SNAP as his own SNAP household - without Joe/

Example: Tom is a 15-year-old disabled teenager and gets SSI. He shares an apartment with his dad. His dad uses a portion of his SSI income to buy food for the special diet recommended by his doctor. His dad also makes his food separately because of his strict dietary restrictions. Because Tom is under 22 – even though his dad buys and makes food separately for Tom – Tom does not qualify for his own SNAP. Tom and his dad must get SNAP together until Tom turns 22.

Option 2:

If you are 60 or older **and** have a permanent disability, you may be able to get SNAP separately for yourself even though you *share food* bought and cooked with the people you live with. [106 C.M.R.](#)

[§361.200\(B\)\(4\)](#). To qualify for your own SNAP benefits, you must meet *three criteria*:

- Be severely disabled,
- Be age 60 or older, and
- The gross income of the other people you live with must be less than 165% of the federal poverty level (FPL).

If you do not get a benefit based on disability (such as Social Security Disability benefits), to prove your disability you can give DTA a statement from a physician that you cannot purchase food and prepare meals because of your disability. [106 C.M.R. §361.200\(B\)\(4\)\(a\)](#).

If you live with your spouse or your children under 22, they must be part of your separate SNAP household. [106 C.M.R. §361.200\(B\)\(4\)](#).

Example 2: Bertha is a 75-year-old disabled woman. She receives \$1,000 per month in Social Security. Bertha lives with her 40-year-old daughter Mary, and Mary's two teenage children. Mary's gross earnings are \$2,500 per month and she purchases and prepares the meals for the entire household, including her mom, Bertha. Since Bertha is *both disabled and over age 59*, she can qualify for a separate SNAP benefit. That's because Mary's gross income is below 165% of the federal poverty level for a family of three.

Mary also has the option to apply for SNAP as *a separate SNAP household* with her children. The two separate households will receive more in SNAP benefits than if they were in one SNAP household of four persons.

Adult Foster Care: Households that are caring for frail elders or persons with disabilities and receive *adult foster care payments* can exclude ("opt out") the foster adult when applying for SNAP. This excludes the foster care payments as income and can increase the SNAP benefits. [106 C.M.R. §361.240 \(F\)](#). See **Question 44**.

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON 5 Online Guide for this section.

38 Are there special rules for seniors and persons with disabilities?

If you are an older adult 60 or older or meet the disability rules for SNAP (see **Question 39**) you may benefit from special rules including:

- More of your shelter costs can be deducted. See **Question 85**.
- You can claim out-of-pocket health care costs. See **Question 80**.
- You may qualify for some SNAP benefits even if your gross income *exceeds* the 200% gross income test (but you must also meet the SNAP asset test). See **Question 67**.
- If you are a legal immigrant adult, you may be exempt from the 5-year waiting period for federal SNAP benefits. See **Question 50**.
- You may be eligible to apply as a separate SNAP household even if you live with others who buy and prepare food for you. See **Question 37**.
- If you are 60 or older, you can use the DTA Senior Assistance Office for help. See **Question 25**.

39 How do I show DTA I am disabled?

Under the SNAP rules, [106 C.M.R. §361.210 \(A\)\(B\)](#), you are considered to be disabled if you *receive* any of the following federal, state or private (pension) benefits:

- Supplemental Security Income (SSI) benefits or Social Security Disability benefits,
- DTA cash assistance based on a severe disability,
- Certain disability pensions or railroad retirement benefits,
- Veteran's service or non-service disability benefits depending on severity of disability, or
- Special MassHealth coverage based on a disability determination, see below.

Cash Assistance Disability Determinations

If you receive EAEDC, in order to meet the SNAP disability criteria, you must meet the SSI

standards of disability. To show DTA you are severely disabled and you have applied for or receive EAEDC, DTA will ask you to complete an “EAEDC Medical Provider Statement” form. The form asks a medical provider to explain if your disability will last for 12 months or more or result in death. If they say yes, then DTA should list you as meeting the SNAP disability criteria in your case record.

MassHealth Disability Determinations

The MassHealth application asks a question about whether someone has a disability. If you answered “yes” and Social Security hasn’t already decided if you are disabled, MassHealth will mail you a MassHealth Disability Supplement. You need to complete and send it back to the Disability Evaluation Services (DES) for a determination. For help completing the form or for other languages, call the DES Help Line at (888) 497-9890.

You can also download the form from the MassHealth website. For copies of the Supplement including the medical release forms, in English or Spanish, go to [MassHealth Member Forms](#).

Qualifying for MassHealth on the basis of disability may enable you to qualify for more health care benefits than if not disabled. Having the MassHealth DES disability determination may also allow you to claim your health care expenses and actual shelter costs that can boost your SNAP.

If you are already getting MassHealth and did not answer “Yes” to the disability question at the time you applied, you can report a change at any time by calling MassHealth. If you have an online MassHealth account, you can update your application to indicate you have a disability. Start this process by completing and submitting the disability supplement paperwork as soon as possible. It is possible that DTA may issue you back benefits based on disability.

Immigrants and Disability Determinations

Some legal permanent residents (LPRs – i.e. green card holders) age 18 or older may need to wait until they have had a green card for 5 years to qualify for SNAP unless they are exempt. It depends on how they got their LPR status (for example, LPRs who were refugees or asylees do not have to wait 5 years, and others may be able to count their time in other humanitarian statuses). In addition, there is NO waiting period for any LPR who is severely disabled and receives EAEDC cash assistance or another disability-based benefit. DTA also uses the information in the “EAEDC Medical Provider Statement” form described above to verify disability to skip the 5-year bar. See **Question 50**.

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section

40 What if I am homeless or live in a shelter?

You do not need a permanent address, cooking facilities or a regular place to live to get SNAP. [106 C.M.R. §362.100](#).

- You can get benefits if you live on the street, are staying at a homeless shelter or a shelter for victims of domestic violence. [106 C.M.R. §361.240\(B\)](#).
- You can also get SNAP even if you get free meals at the shelter or soup kitchen/meals program.
- You may also qualify for expedited (emergency) SNAP. See **Question 3**. And the *homeless deduction* should be used to calculate your countable income. See **Question 86**.

If you *do not have an address* where you can regularly pick up mail, you can ask DTA to send mail to a local organization (shelter, social services agency) that accepts mail for clients or to a U.S. Post Office Box. If you have a smart phone or access to a computer and an email address, you can also use DTACONnect to see all the notices and forms DTA sends you. See **Question 23**.

Proof of identity and residence

When you apply, DTA will ask for *proof of your identity*. [106 C.M.R. §361.610\(G\)](#). DTA will also ask for your SSN (you can give it verbally if you know it).

Once DTA verifies your SSN through a data match, your SSN serves as proof of identity. And there are other ways you can prove who you are including a written statement from a staff person at a food pantry, detox program or shelter. [106 C.M.R. §361.640\(B\)](#).

DTA must accept reasonable proof that you are a Massachusetts resident. If you do not have proof because you are homeless or you just moved to Massachusetts, DTA should accept a self-declaration that you are a resident.

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON 5 Online Guide for this section.

41 Am I eligible for SNAP if I live in a hospital, school, or other institution?

If you are living in a hospital, nursing home, prison or other institution for more than 30 days where you get the *majority of your meals* (more than half), you *do not qualify* for SNAP. Institutions include hospitals, boarding schools, nursing homes, mental health facilities, prisons and similar institutions. [106 C.M.R. §361.240\(A\) and \(B\)](#). This “institution” rule also applies to college students with full meal plans. See **Question 45**.

However, there are a number of *exceptions* that permit residents of certain institutions to receive SNAP. [106 C.M.R. §361.240\(B\)](#). You may still be eligible for SNAP if you live in the following settings:

- federally subsidized housing for the elderly,
- a group home serving persons with disabilities (less than 16 residents),
- a shelter for homeless individuals or families and shelters for victims of domestic violence,
- a teen parent living program *or*
- a drug or alcohol substance use treatment center (public or nonprofit). See **Question 9**.

Troubleshooting Special Situations:

Home detention: If you are sentenced by a court to “home detention” (for example, you wear an electronic or prison bracelet at home), you are not living in an institution and should be eligible for SNAP.

Battered individuals: If you move to a *Domestic Violence shelter* you can get your own SNAP benefits, even if you are still on the SNAP grant of an abuser you fled from.

Children in DCF or DYS Custody: You cannot include your children in your SNAP case if they have been placed in the custody of Department of Children and Families (DCF) or Department of Youth Services (DYS) for an extended period (more than 30 days). And, Social Security or other income received for the care of a *child in an institution* is not countable to rest of household.

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

42 What if I am a boarder or I live in someone else's home?

If you rent a room in someone else's home and *do not get or pay for meals*, you are considered to be "a roomer." As a roomer, you can apply for SNAP as a separate household, so long as you purchase and prepare the majority of your meals separately from the other people in the house. [106 C.M.R. §361.230\(A\)](#). See **Question 35**.

If you live in someone else's home **and** you pay that person for a room and at least half your weekly meals, you are a "boarder." You are not eligible for SNAP benefits as a separate household. [106 C.M.R. §361.240 \(D\)](#).

If the household where you board is getting SNAP, DTA will either include **or** exclude you and your income in their SNAP benefits based on how much you pay for food. If excluded, DTA will then count what you pay for room and board (after certain deductions) as income to the host household.

If you do *not* pay a "reasonable amount" for meals, you must be included in the SNAP household of the household providing meals. That means your income will be counted in figuring the eligibility of the whole household. [106 C.M.R. §361.240\(D\)](#). A "reasonable amount" is an amount that equals or exceeds the SNAP benefit level for your household size. [106 C.M.R. §361.240\(D\)](#).

Example: Janet and Joe are both age 25 and married. They live with Janet's mother, Fran who receives SNAP. Fran shops and cooks for all of them. Janet & Joe pay Fran \$400/month for food and \$500/month for rent. They are considered "boarders" in Fran's home. Because \$400 is less for food than the maximum SNAP benefit amount for a household of 2, Janet & Joe must be part of Fran's SNAP household and their income counts.

If Janet and Joe started purchasing and preparing most of their food separately - instead of giving Fran money for food - they would not be required to be in Fran's SNAP household. They can apply for and would qualify for their own SNAP benefits, depending on their countable income.

If you are 60 or older and/or disabled and live with others who provide meals for you, see **Question 37**. For caregivers caring for an adult with disabilities under the Adult Foster Care program, see **Question 44**.

43 What if I am caring for a foster child?

In general, children under age 18 and under the supervision of an adult must be part of the adult's SNAP household. However, if you have taken in a foster child, you can choose to *include or exclude* the child from your SNAP household benefits. [106 C.M.R. §361.240\(F\)](#). You can make this decision any time.

If you exclude your foster child from the SNAP case, the foster care payments and any other income you receive directly for the care of the child, such as child support or SSI, *will not count* as income to your SNAP household. For that reason, it is usually better to exclude the foster child to maximize the SNAP benefits for the rest of the household. However, the foster child cannot get SNAP benefits as a separate SNAP household.

Example: Sam and Susan Smith have two minor children of their own. They also care for a 10-year-old foster child, Jimmy, and receive \$600 per month in foster payments. The Smiths can apply for SNAP for themselves and their two children (a family of four), *excluding* Jimmy in the SNAP household and excluding the foster care payments.

Alternatively, the Smiths can apply for SNAP for a family of five (2 adults, 3 children including Jimmy). In that case, their income plus the foster care payments will be used in the SNAP calculation. However, the amount of their monthly SNAP may be lower if they include the foster child and foster care payments.

Check out MLRI's FAQ on [Foster Families and SNAP](#). And if you are a caregiver for an adult with disabilities under the Adult Foster Care program, see MLRI's FAQ on [Adult Foster Care and SNAP](#).

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON 5 Online Guide for this section.

44 What if I am providing adult foster care to an older adult or person with disabilities?

Adult Foster Care (AFC) is a special MassHealth program for frail elders and adults with disabilities who cannot live alone. [130 C.M.R. §408.410-438](#). MassHealth pays qualified AFC caregivers to provide in-home care to elder and disabled MassHealth recipients who would otherwise be in a long-term care facility. Sometimes, AFC caregivers may also be low income and qualify for SNAP benefits.

If you are responsible to care for a disabled adult under the Adult Foster Care program, you have

the choice to *include or exclude* the adult fostered person from your SNAP household – even if he or she shares all meals with your family. [106 C.M.R. §361.240\(F\)](#).

If you do not include the fostered adult in your SNAP household, *none* of the AFC payments you receive as a caregiver will count toward your SNAP benefits. In addition, none of the income of the disabled adult will count (such as SSI or Social Security). In most cases, caregivers qualify for higher SNAP benefits by excluding the fostered adult.

Example: Frank and Emma Wilson provide adult foster care for Emma’s 88-year-old mother, Margaret, who lives with them. Emma takes care of her daily needs, including all her meals. Frank works part time earning \$1,800/month. The AFC Program pays Emma \$1,500 a month. Margaret also receives \$800 in Social Security. Under the SNAP rules, Frank and Emma can apply for SNAP benefits as a 2- person household, excluding Margaret. By excluding her, her Social Security income and the AFC stipend are also excluded. DTA should only count Frank’s \$1,800 in earned income for a 2-person SNAP household. This is true even though the 3 of them purchase and prepare food together.

Disabled adults under age 22:

If the fostered adult is a disabled adult child under age 22 living with their parent, unfortunately the parents cannot exclude the fostered individual until they turn age 22. The SNAP household composition rules require the child under 22 to be in their parent’s case. See **Question 36**.

See also MLRI’s FAQ on [Adult Foster Care and SNAP](#),

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

45 What if I am a college student?

Special SNAP eligibility rules apply to college students who are ages of 18 through 49 and enrolled *half-time or more* in a post-secondary institution. That means a school that requires students to have a high school diploma or GED to enroll.

While the student rules sound complicated, **many low-income students are eligible for SNAP in Massachusetts**. You may qualify for SNAP benefits if you are low-income and meet *any* of the following:

- you attend a community college, the Franklin Cummings Institute of Technology or Quincy College (a municipal college)
- you are enrolled in *an adult career and technical education program* (many offered by Voc/Tech high schools in MA)

- you *receive MASSGrant* as part of your financial aid package
- you have a *work study job* (any hours of work), **or** your college awarded you *work-study* and you have not refused a job offer
- you are in a DTA-approved SNAP *education or training activity*, another government agency-sponsored education and training program **or** a non-government on-the-job training program
- you *care for a child living with you* who is under age 6, or a child age 6 to age 12 **and** you are a single parent enrolled full time **or** you lack childcare to both attend school and work part-time
- you receive *TAFDC cash benefits* as a family or a pregnant person
- you *receive a disability-based benefit* such as Social Security or SSI, EAEDC cash benefits, Veterans benefits or MassHealth as disabled
- you have an *impairment or disability* that impacts your ability to both attend college and work 20 hours/week
- you receive support from your school's disability access or reasonable accommodations office
- you are chronically homeless
- you are enrolled in college through *MassAbility* or a *mental health or substance abuse* rehabilitation program **OR**
- you are *working an average of 20 hours* a week or more, or an average of 80 hours/month.

The student eligibility rules are here: [106 C.M.R. §§362.400 through 362.420.](#)

SNAP work rules and students

The SNAP work rules (**Questions 56 to 65**) do not apply to eligible college students, because students enrolled half-time or more are exempt from the rules. If you meet any of the student criteria above, you do not need to also work while going to school. students aged 50 to 65 don't need to meet the student rules, but are still exempt from the SNAP work rules if they are enrolled half time or more.

Students on summer break/vacation

The eligibility rules for students are in place while you are on summer or vacation break as long as you are enrolled for the upcoming term. You are no longer considered "*continuously enrolled*" once you graduate, are suspended, expelled, drop out, or you are planning to enroll in college in the coming months but the term has not started yet. [106 C.M.R. §362.420.](#)

Students living with a spouse or parents

If you *live with your parents* and you are under age 22, you must be part of their SNAP household, even if you purchase and prepare your own food separately. If you live with your spouse, you must be together in a SNAP household. See **Question 36**.

Students with meal plans

If you *live on campus* and get most (more than 2/3) of your meals through your meal plan, you do *not* qualify for SNAP. You are considered to be “living in an institution”, see **Question 41**. You may qualify if you meet the other student rules during summer breaks.

Financial aid – loans, grants, work study

The DTA SNAP rules *do not count any financial aid* as income to calculate your SNAP benefit amount. This includes federal, state, local and private financial aid. It includes loans, grants, scholarships, stipends and work study. When you apply or have an Interim Report or Recertification, DTA will ask you if you have any earned income. Be sure to tell DTA if your earnings are through work study. Work study is non-countable income. See **Question 69**. DTA should not ask you for work study paychecks nor count the work study as earnings.

Verifying college student information

You can tell DTA in writing or verbally (by phone or in person) where you are enrolled in school and which of the above rules you meet. DTA should not ask for any proof of your student status - unless the information you give them is found “questionable.” (DTA does need proof of countable income). See **Question 17**.

Example: Terry applies for SNAP over the phone with DTA and sends in proof of his identity and MA residency. He tells the worker he is a Roxbury Community College student. DTA accepts his verbal statement and does not ask for any proof documents.

For more information, including Know Your Rights fliers and infographics on SNAP for students, see: [Masslegalservices.org/Food4Students](https://masslegalservices.org/Food4Students) and the [MA Hunger Free Campus Student Resources](#).

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

46 What if I have a criminal record or DTA says I’m a “fleeing felon” or violating my probation?

A criminal record, including a drug felony conviction, does not bar you from receiving SNAP benefits in Massachusetts. However, you can be barred from SNAP benefits if you:

- are “actively fleeing” prosecution or punishment for a felony, or
- violate a condition of probation or parole.

See [106 C.M.R. § 367.800\(D\)](#).

Fleeing felons

In order to bar you from SNAP as a fleeing felon, a law enforcement official must tell DTA of its intent to arrest you (within 20 or 30 days). They must also provide DTA with an outstanding felony arrest warrant for one of the following National Crime Information Center Uniform Offense Classification Codes:

- Escape (4901)
- Flight to avoid (4902), or
- Flight-escape (4999)

See [7 C.F.R. §273.11\(n\)\(1\)\(ii\) and \(3\)\(i\),\(iii\)](#).

Parole/probation violators

To be considered violating probation or parole, law enforcement must be actively seeking to arrest you (within 20 or 30 days) to enforce the conditions of the probation or parole. [7 C.F.R. §273.11\(n\)\(1\)\(ii\) and \(3\)\(i\),\(iii\)](#).

Other SNAP rules:

Disqualifications for trading SNAP for drugs: If a court convicts an individual for buying or selling SNAP benefits for a controlled substance, they are ineligible for 2 years for the first finding and permanently for the second. [7 CFR 273.16\(b\)\(2\)](#).

Timely processing if delayed verification: DTA has to follow SNAP application timeliness standards. If it takes more than 30 days for DTA to verify this, DTA must process your application without taking into consideration fleeing felon or probation/parole violation status.

Treatment of income: If you are barred from SNAP benefits under these rules and you have income, all of your income counts against other members of your SNAP household. The rest of your household should remain eligible for benefits if you are disqualified from SNAP under these rules. See **Question 78**.

House arrest: If you are sentenced to home confinement or home detention (for example, you have an electronic bracelet), you should not be denied SNAP because you are not still incarcerated. See **Question 41**.

Contact Legal Services if you are denied benefits because DTA determined you are a fleeing felon or violating your probation or parole. You can always ask to speak to a Supervisor, call the Ombuds Office or appeal.

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

47 Who is considered a United States citizen?

You are a United States citizen if you were *born anywhere in the United States or its territories*, including Puerto Rico, Guam and the U.S. Virgin Islands. You are also a U.S. citizen if you were born in another country and then became a U.S. citizen through *naturalization*. See [106 C.M.R. §362.200](#).

You may also have “derived” U.S. citizenship if you were born in another country and at least *one of your biological parents* was both a U.S. born citizen at the time of your birth and lived in the U.S. at any time prior to your birth. If *either or both your parents* naturalized to U.S. citizenship before you turned age 18, you may also have derived citizenship. See [106 C.M.R. §362.210](#). Check with an immigration specialist if you think these rules apply to you.

The federal and state SNAP rules allow you to *self-declare your U.S. citizenship*, unless the information you provide is considered “questionable.” See [106 C.M.R. §362.210](#). See **Question 13**. Note, U.S. citizenship of children should not be considered questionable solely because parents are immigrants.

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

48

Am I eligible for SNAP if I am a legal immigrant?

In July of 2025, Congress signed a Budget Reconciliation bill, H.R.1, that ended SNAP benefits for many legally present immigrants with humanitarian statuses. Many states started implementing these changes 120 days later, in November of 2025.

Starting November 1, 2025, DTA was required to deny SNAP benefits at application for humanitarian immigrants who historically qualified for SNAP but do not meet the narrow rules. This includes immigrants with legal status as refugees, asylum, humanitarian parole, victims of human trafficking and battered immigrants. In November, DTA also started terminating SNAP benefits for these humanitarian immigrants as their SNAP case came up for recertification (case review).

Now, only four groups of low-income legally present immigrants are eligible for SNAP benefits:

- **Immigrants who are now U.S. citizens.** These are immigrants who had legal permanent resident (LPR) status and have since “naturalized.”
- **Legal Permanent Residents (LPRs).** Often known as “green card” holders, these are immigrants who typically acquired LPR status through a family member or an employer, or who were able to apply for LPR status if they had prior legal status as a refugee, asylee, victim of trafficking and other statuses. Some, but not all, adult LPRs may need to wait five (5) years to qualify. See **Questions 49 and 50.**
- **Cuban/Haitian Entrants.** These are nationals of Cuba and Haiti who may have entered with parole, have an application for political asylum pending or may be in removal proceedings. See **Question 51.**
- **Compact of Free Association (COFA) citizens:** This includes individuals from the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau.

Unless you fall within one of the above four groups, you are *not eligible* for SNAP benefits if you apply after November 1, 2025. For current SNAP recipients, DTA will check if these rules apply to you *at your next SNAP recertification* (renewal). If you are now a Legal Permanent Resident (LPR), be sure to tell DTA that your immigration status has changed.

It is important to note, despite public rhetoric, undocumented immigrants and non-immigrants (tourists, exchange students, diplomats) have never been eligible for SNAP.

You can still file an application for U.S. citizen or eligible immigrant *dependents and other members of your household* who meet the SNAP eligibility rules. See **Question 52.** Your income will count in determining their benefits, but you will not receive any benefits for yourself. See **Question 54** that explains how income is counted in mixed status households. See a **Question 34** that explains who must be included in a SNAP household.

Resources and Troubleshooting:

- MLRI's FAQs on [SNAP for legally present immigrants](#).
- DTA's Updated Desk Guide Chart re [Non-Citizen Eligibility Requirements](#)
- USDA guidance on [SNAP Alien Eligibility](#) (updated as of 12/9/25)
- **Immigration documents:** For copies of USCIS documents and a key to the immigration codes, see materials from the National Immigration Law Center's [Guide to Immigrant Eligibility for Federal Programs](#)
- **Pending Verification:** If DTA has sent a request to USCIS for verification of immigration status, and that request is pending, DTA should issue SNAP benefits for up to 6 months pending the results (if the immigrant meets the other eligibility rules). [7 C.F.R. § 273.2\(f\)\(1\)\(ii\)\(B\)\(3\)](#) and [106 C.M.R. § 362.220\(C\)](#). If your documents are lost or stolen, contact Legal Services or an immigration specialist who can help you get replacement documents from USCIS and also provide an affidavit (sworn statement) on your status.
- **Expired documents:** It is important for immigrants to keep their documents up to date. Some expired USCIS documents, such as Employment Authorization Documents (EADs) may mean the immigrant's status has ended or changed. But for some immigrants, their status may not have changed and/or the immigrant is waiting for their updated document. For example, a legal permanent resident (LPR) may have an expired I-551 ("green card"), but their LPR status does not expire. The DTA worker should do SAVE check.
- **Fixing incorrect immigration information:** USCIS has a special process to correct wrong or incomplete information in SAVE. It is critical that immigrants work with an immigration specialist to correct the information USCIS has on file.

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON 5 Online Guide for this section.

49 Do all legal permanent residents (LPRs) need to wait five years for SNAP?

No. Most legal permanent residents (LPRs) are not subject to the five-year waiting period. This includes LPRs who:

- Are children under age 18.
- Had prior legal status as a refugee, asylee, victim of trafficking or other humanitarian status from which they adjusted status.
- Are disabled (see **Question 50** below)
- Have a U.S. military connection
- Entered the U.S. as an Amerasian (child of a US military member) or are certain Hmong and Laotian tribal members.

Some LPR adults may need to wait 5 years to qualify for SNAP. This mostly impacts LPRs who got their green cards through a family member (immediate relative petition) or an employer and a few other categories.

How work history can end the 5-year wait

LPRs with **40 qualifying quarters (10 years)** of work history can often qualify for SNAP without the five-year waiting period. [106 C.M.R. § 362.220\(B\)\(7\)\(f\) and \(g\)](#).

You can get work history credit for the following:

- Work you did in the United States or a U.S territory.
- *Work in any of 29 foreign countries where the U.S. recognizes work*, including many countries in Europe and Asia, as well as Australia, Brazil, Chile, Canada and more (depending on the dates of work). See the Foreign Country/Effective Date chart in DTA's Online Guide re [Verifying 40 Quarters](#).
- *Work done by your spouse while married*, including work done by a common law spouse even if you were not legally "married" (but you lose your spouse's quarters upon divorce).
- *Work done by your parents before you were 18*. This includes work done by your parents before you were conceived, born, or adopted – including work done in the US and the approved foreign countries.

Amount of earnings needed

You can get credit for past work history - even if you did not earn a lot. For example, based on the Social Security Administration's updated [quarters of coverage tables](#), you will get credit for 4 quarters if you earned (gross) at least \$6,920 for calendar year 2024, and 4 quarters if you earned at least \$7,240 in 2025. The SSA chart is also included in DTA's [Work History "Amount of Earnings" Chart](#). In any cases, you may have worked for just a couple months, but earned enough to still get the full 4 quarters for that year.

Using spouse or parent work history

As noted above, a SNAP household can use the work history of a spouse or parent to achieve 40 quarters of work history. Here's two examples:

Example 1: Clara and Jose got LPR status based on an employer petition, but the employer's business folded 2 years ago. They found other low wage jobs and both have been working and paying taxes since they arrived in the U.S. Clara has 12 quarters of work (3 years work with 4 quarters in each year) and Jose has 32 quarters of work (8 years with 4 quarters in each year). Clara can count her 12 quarters and her husband's 32 quarters of work for a total of 42 quarters of work. Jose can claim Clara's 12 quarters and his own. Clara and Jose are *both* eligible for SNAP; neither need to wait 5 years.

Example 2: Siobhan got her LPR status 2 years ago. Her parents lived and worked in the U.S. for 21 years, including for 10 years when Siobhan was a minor living with relatives in Ireland. Siobhan's earnings are up and down, so she applied for SNAP. She can count her own work history for SNAP and her parent's work history before she turned age 18. She qualifies for SNAP through the combination of her and her parent's work quarters from when she was a minor (and also, if needed, before she was born).

NOTE: Claiming the work history of a spouse or parent to qualify for SNAP does not impact their FICA nor amount of their own Social Security. They can still claim all their work history when they file for Social Security benefits.

Restrictions on work history claimed

The LPR cannot claim credit for work done after December 31, 1996, if the LPR also received one of the following federal means-tested benefits while working: TAFDC, SNAP, Medicaid (federal MassHealth), or SCHIP (health benefits for children). If the wage earner received benefits on behalf of an eligible child or spouse - but *did not* receive any benefits for themselves - the wage earner does not lose the right to claim the countable work quarters.

Proving 40 quarters of work history:

Work history can be confirmed through pay stubs, employer statement, union records, W-2, federal or state tax returns, SSA records, proof of self-employment earnings and business expenses, records of employment in other states, or from foreign countries where work history is

accepted. Receipt of Social Security survivor's benefits should be sufficient proof of work quarters for SNAP.

DTA may be able to get information about your work history through the SSA Quarters of Coverage History System (QCHS).

If you think your spouse or parent(s) before you turned 18 have work history, your spouse or parent will need to provide that verification, tell DTA so they can inquire about this person's work history directly with SSA. To get information about a parent or spouse, DTA should send the Social Security Administration a [“Request for Quarters of Coverage Based on Relationship” SSA-513 Form](#). DTA will ask you for the spouse or parent's name, SSN, date of birth, relationship to you, and which years and quarters you are seeking to confirm. Note, DTA cannot use the SSA QCHS system mentioned above to request this information.

Pending SNAP eligibility:

DTA should issue you SNAP benefits for up to 6 months if you need time to verify work history or while DTA is waiting on a response from SSA. [106 C.M.R. § 362.220\(C\)](#).

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON 5 Online Guide for this section.

50 If I am a disabled legal permanent resident, do I need to wait five years for SNAP?

No. You do not need to wait five years if you are a legal permanent resident *adult* and you receive a disability-based benefit because of a severe disability. [106 C.M.R. § 362.220 \(B\)\(7\)\(e\)](#). This policy also applies to battered immigrants and humanitarian parolees. If you are *under age 18*, you do not need a disability-benefit; there is no 5-year wait.

Question 39 explains the disability rules for SNAP and multiple ways you can qualify as receiving a “disability-based benefit,” including through EAEDC or MassHealth. See **Question 48**.

51 Who are Cuban-Haitian Entrants and do they qualify for SNAP?

Immigrants who are nationals of Cuba or Haiti remain eligible for SNAP benefits. The July 2025 Budget Reconciliation Act (H.R.1) authorized certain nationals of Cuba or Haiti to remain eligible for SNAP as “Cuban-Haitian Entrants.”

It is important to note, Cuban-Haitian Entrant status is not an immigration status. It is a legal term used for public benefits purposes under Section 501(e) of the Refugee Education Assistance Act of 1980 (REAA).

You may be eligible for SNAP as a Cuban-Haitian Entrant if you are a national of Cuba or Haiti and you:

- Were granted humanitarian parole upon entry to the U.S. at any time since 1980,
- Are in removal proceedings, but no final enforceable order of deportation,
- Have an application for asylum pending with USCIS, or
- Were granted parole as a Cuban-Haitian entrant.

However, if you entered the United States as a visitor or student, you are not considered a Cuban-Haitian Entrant. This is true even if you qualified for Temporary Protected Status (TPS). TPS is not an eligible status for federal benefits. But if you also have a pending application for political asylum, or you entered at some point after 1980 with Humanitarian Parole, you may be eligible for SNAP.

Example: Claudine entered the United States in 2020 and was granted Humanitarian Parole. She got TPS a few years ago, which has now expired. Even though her Parole status was not extended, she is a Cuban-Haitian entrant because she entered with Parole.

More information: See also US Office of Refugee Resettlement’s Fact Sheet, [Benefits for Cuban Haitian Entrants](#) and USCIS SAVE instructions: <https://www.uscis.gov/save/resources/information-for-save-users-cuban-haitian-entrants>

See also MLRI’s FAQs in English and Haitian Creole: [Cash and Food Assistance for Low Income Haitians](#).

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

52 Can my children get benefits if I am an ineligible immigrant?

You have the right to apply for eligible household members, such as U.S. citizen children and spouses. If you or other household members are not eligible for SNAP or are an LPR subject to the 5-year waiting period, you can *exclude* yourself from the SNAP application. Be sure to tell DTA if any member of your household wants to “opt out” of the application. You are not required to give proof of immigration status or supply an SSN any individuals your household not seeking SNAP. [106 C.M.R. §362.220](#).

However, the SNAP benefits for your dependents if you opt out. You still must give DTA information about your income. DTA will count your income in calculating the SNAP benefits for dependents or other eligible household members. See **Question 54** on how your income will be counted.

DTA should only ask for proof of the U.S. citizenship of your children or other eligible household members if their status is “questionable.” [106 C.M.R. §362.210](#). Being a U.S. born child to immigrant parents is not questionable.

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

53 Will getting SNAP benefits hurt my immigration status?

Under current rules, it is safe to apply for and get SNAP for yourself if you are eligible and on behalf of other eligible household members. It is also safe to get cash assistance for eligible dependents, such as your U.S. citizen children.

As this Guide is released, the Trump Administration proposed changes to this rule. USCIS received thousands of comments in opposition. The proposed public charge changes are currently not in effect. See Protecting Immigrant Families flier, [3 Things You Need to Know about Public Charge](#), for current information.

Public Charge

Some immigrants in the U.S. who are applying for Legal Permanent Resident (LPR) - or are applying to enter the U.S. - may be asked whether they have received certain government benefits. Immigration officials ask these questions to decide if an immigrant is likely to become a “public charge.” They are looking at whether the immigrant is able to support themselves and

may rely on certain government benefits. If immigration officials determine someone is likely to become a “public charge,” the government can deny an application for lawful permanent residence, or deny admission (entry or reentry) to the United States.

Currently there are only two types of benefits that *may* trigger a “public charge” determination:

- Programs that pay for long-term institutional care such as a nursing home, and
- Cash assistance benefits the immigrant receives for themselves, because they have little or no money, such as Supplemental Security Income (SSI), TAFDC and EAEDC.

If the immigrant applies for cash benefits for eligible dependents - but not themselves – these benefits currently do not trigger a “public charge” determination. Nor do special cash payments like the tax returns and benefits that are not needs-based, like Unemployment, are not considered for public charge.

Reporting immigrant status information

DTA does not report immigrants to USCIS or Homeland Security. DTA can only report immigrants who apply for benefits for themselves and show DTA a final order of deportation. See DTA’s “[Rights and Responsibilities](#)” in the Online Guide

State and privacy rules also prohibit state workers from sharing information about your status with immigration authorities, unless you give written permission. The information on your SNAP application is private. [106 C.M.R. §360.400](#).

For more resources:

- Protecting Immigrant Families (PIF) fliers and updates on public charge: PIFCoalition.org/
- MassLegalHelp FAQs on [Understanding Public Charge](#) in English and Spanish
- Mass Immigrant and Refugee Advocacy Coalition [updates on public charge](#)

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

54 How does DTA count the income of an ineligible immigrant?

Ineligible immigrants often have family members who are eligible for SNAP, such as an immigrant parent living with U.S. citizen children. There are *two* different calculations depending on the immigration status:

Households with legally-present but ineligible immigrants

DTA uses a special calculation of your income if you are *lawfully residing in the U.S.* but are ineligible for SNAP benefits. [106 C.M.R. §365.520\(B\)\(2\)](#). This includes immigrants who are refugees, asylees, victims of trafficking as well as other immigrants with temporary legal statuses such as pending asylum, pending adjustment, Temporary Protected Status (TPS).

DTA's calculation for households with ineligible legal immigrants involves *three* steps to arrive at the correct SNAP benefit under [106 C.M.R. §364.600\(C\)](#).

Example: Juana was granted asylum but is not an LPR. Juana is not eligible for SNAP until she gets LPR status. She has two children who are both U.S. citizens. She currently earns \$1,250/month gross income and pays \$700 rent, plus heat and cooling costs. Her children have no income. Here's how DTA calculates her federal SNAP benefits:

- **STEP 1:** DTA calculates SNAP for all household members, including the ineligible immigrant and their income.

DTA calculates the benefits for **three** people, including Juana and her two children. DTA counts all of Juana's income and allows the income deductions. The SNAP would be \$771/month.

- **STEP 2:** DTA calculates SNAP for the eligible household members excluding the ineligible immigrant and their income. If the eligible children have countable income, their income is counted to determine their SNAP benefits.

In Juana's case, the children have no countable income. The SNAP for 2 persons with no countable income is \$546 a month.

- **STEP 3:** The household is eligible for the SNAP amount that is lower between Step 1 and Step 2. The rationale is so that households with ineligible immigrant members do not get more SNAP than if all members were U.S. citizens.

In Juana's case, the benefit for the children is \$546, the amount in Step-2 - which is less than the \$771 from Step 1.

Households with “undetermined status” members

If you are *undocumented immigrant* or *do not give DTA information about your immigrant status*, the SNAP benefit calculation is harsh. DTA will count *all* your income toward the eligible members, *without* considering your needs. [106 C.M.R. §365.520\(A\)](#). This calculation is identical to the calculation for households with a member who is sanctioned due to an Intentional Program Violation. See **Question 78**.

Example: In the case of Juana, above, suppose she does not have proof of legal status. Because Juana has “undetermined status,” DTA will count 100% of her income against a SNAP calculation for the 2 children only. The children will receive only \$532 in SNAP benefits.

55 Does the income of an immigrant’s sponsor count?

If you *receive* financial support directly from the sponsor to pay for living expenses, that money is treated as countable unearned income in calculating your SNAP benefits. [106 C.M.R. §363.220\(B\)\(8\)](#).

Example: Johann is an LPR from Germany. Every month his sponsor sends him a \$500 payment. DTA will calculate Johann’s SNAP benefits counting \$500 of unearned income.

The income of someone who “sponsored” you does not count if you are “indigent” (very low-income) and you *do not receive any payments* from the sponsor. “Deeming” is a legal term that means counting income from a third party – such as a sponsor – that you do not actually receive but is assumed to be available.

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

56 What are the General Work Rules?

Any member of your household aged 16 through 59 – and not exempt – must register for work during the SNAP application process. This happens when you sign the application. [106 C.M.R. §362.310](#). DTA calls these rules the “General Work Rules.” SNAP work registration rules are different from the ABAWD time limit rules (see **Questions 60-65**).

When you sign the SNAP application you are agreeing to the work rules for any household member age 16 to 60 unless exempt. You are agreeing to the following:

- If you earn more than \$217.50 per week (before taxes) – you agree you will not quit your job unless you have a good reason or got another job earning \$217.50 or more per week.
 - This rule does not apply to you if you are self-employed or an independent contractor.
- If you work 30 or more hours per week – you agree to not reduce your work hours without a good reason, if reducing your hours means you make less than \$217.50 per week.
 - For example, if you earn \$16 an hour and you work 30 hours per week, you can’t reduce your hours below 14 hours per week.
- If you are offered a job – you agree that you will accept it unless you have a good reason to refuse. See **Question 59** on “good cause.”

Sometimes these rules are called the “voluntary quit” rules.

Exemptions from voluntary quit

The SNAP rules provide key exemptions from these rules. [106 C.M.R. §362.310\(C\)](#). These exemptions are relevant if DTA thinks you voluntarily quit while you are on SNAP or when you are applying (see **Question 57**) or reduced your hours, or if you are on strike (see **Question 59**).

The exemptions include if you:

- receive TAFDC or EAEDC benefits,
- are pregnant,
- are physically or mentally unfit for employment,
- earn more than \$217.50 per week (federal minimum wage x 30),
- work 30 hours per week (gainfully employed but making less than \$217.50/week due to self-employment business expenses or other reasonable circumstances),

- are a student enrolled in school at least half-time,
- have applied for or get Unemployment Benefits,
- care for a child under age 6 or a person with a disability (this person does not need to live with you or be related to you), or
- are in a substance abuse treatment program.

The voluntary quit rules while getting SNAP

If you are not exempt and you voluntarily quit a job without good cause *after the date you applied* for SNAP benefits, you are ineligible for three months, but the rest of your household is still eligible. [106 C.M.R. §367.800\(E\) & \(F\)](#).

Penalties increase for a second and third quit – to six months of ineligibility and twelve months, respectively. On the first quit, if you are the “head of household,” your whole household is ineligible for three months. On the second and third quit, if you are the head of household your whole household is ineligible for six months.

DTA voluntary quit punishments may be more severe than is allowed under the federal SNAP rules. Contact MLRI at info@masslegalservices.org if your SNAP is denied or stopped due to these rules.

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON 5 Online Guide for this section.

57 What happens if I quit a job shortly before applying for SNAP?

DTA can deny your SNAP application if you are not exempt from the “voluntary quit” rules (see **Question 56**) *and* you voluntarily quit a job without a good reason. [106 C.M.R. §362.310\(A\)](#)

The voluntary quit rule may apply to you if:

- you are not exempt from the voluntary quit rules (see **Question 56**),
- you quit a job where you were earning at least \$217.50/week, or you were working 30 or more hours per week and reduced your hours enough that your earnings dropped below \$217.50/week,
- you did not have a good reason for quitting or reducing work hours (see **Question 58**),

- **and** you are applying for SNAP within 60 days of quitting or reducing your work hours.

These rules do not apply if you ended a self-employment job.

DTA must inform you about your rights and responsibilities when you apply for benefits, [106 C.M.R. §361.550](#), including telling you which household members are subject to the work requirements as well as the penalties for voluntarily quitting a job after you apply for benefits and/or refusing to comply with the work requirements.

Quitting a job before applying for SNAP

If you are the head of household and you voluntarily quit a job within the 60 days before you applied for SNAP with no good reason, DTA's SNAP rules say that your *entire household* cannot get SNAP benefits for *three* months. [106 C.M.R. §367.800\(E\)](#).

The disqualification penalties increase the second and third times the applicant quits a job without good cause.

This sanction or punishment on the entire household may be more severe than is allowed under the federal SNAP rules. Contact MLRI at info@masslegalservices.org if your SNAP is denied due to voluntary quit.

Example 1: Frank worked for McDonalds until September 30th when he quit over a personal dispute with a co-worker. He applied for SNAP for his family on October 15th. He is subject to the voluntary quit rules. Because he quit his job within 60 days of his SNAP application, DTA says the whole family is ineligible for three months. If he can show he had a good cause reason for quitting his job the family is eligible as of the date he applied (October 15th).

Proof of income ending or termination from a job

When you apply for SNAP, DTA workers should only ask for proof of a job ending if it ended in the 30 days before the date you applied. DTA says that verification of income ending must be provided at Recertification and Interim Report.

If you tell DTA it is hard for you to get this proof or you need help getting it, DTA must help you by doing a collateral contact or, if you and they cannot get proof, accepting a self-declaration.

If you need help getting information from a past employer, you can give DTA permission to make a “collateral contact” with the employer directly. See **Question 16 and [Appendix C. 106 C.M.R. §361.640\(B\)](#)**.

If your SNAP is delayed or denied because you could not get proof income ended, contact MLRI at info@masslegalservices.org.

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON 5 Online

Guide on this section.

58 What is considered a “good cause” reason if I quit my job?

There may be many good reasons why you had to leave a job or reduce your job hours. “Good cause” for quitting a job or decreasing your work hours includes:

- You lack state-standard childcare during the hours of your work, including when you lack special needs childcare for a disabled child.
- You have a family crisis or emergency that you have to deal with during your work hours.
- The employer makes unreasonable work demands, such as not paying you on schedule.
- Employment becomes unsuitable because it is below the federal or state minimum wage; the work activity discriminates against you on the basis of sex, race, religion, ethnic origin, or physical or mental handicap; there is a strike or lockout; the employment places unreasonable risks on your health or safety; the hours interfere with your religious observances; you are required to travel more than two hours/day or, if walking, to walk more than two miles round-trip.
- If you were working more than 20 hours a week, and, for reasons beyond your control, your employment stops or your wages go down.
- If the amount you are paid in a week equals what you would be paid if you worked at least 20 hours and you were paid the *federal* minimum wage, and, for reasons beyond your control, the employment stops or wages decrease. The federal minimum wage is still \$7.25/hour – which means you need to earn \$145 or more per week before taxes.
- You left employment because it was seasonal or migratory, or you are between temporary jobs.
- Acceptance of another job or enrollment in a school or training program requires you to move away or to leave your job.
- You are under age 60 and have resigned from your job but your employer considers it retirement.
- You are a SNAP eligible legal immigrant but do not currently have work authorization (for example, some Cuban-Haitian Entrants).

See [106 C.M.R. §362.340](#) and the additional good cause provisions in [106](#)

[C.M.R. §362.330\(A\)](#).

You don't have to show good cause for leaving a job if you are exempt from the voluntary quit rules. [106 C.M.R. §362.340](#). Even if not exempt, you do not need to prove "good cause" if you: left employment because the employer fired you or asked you to quit, reduced your hours of work but did not leave your work, stopped a self-employment business; or quit a job for a new job that fell through. [106 C.M.R. §362.340\(D\)](#).

If you need to show DTA good cause, you need to verify the good cause. For example, give DTA a statement about the emergency situation with the name and phone number of someone who can confirm the information (a "collateral contact").

If your SNAP is reduced, terminated, or denied due to voluntary quit, contact MLRI at info@masslegalservices.org.

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON Online Guide for this section.

59 What are the rules if I am on strike?

There are negative SNAP rules that affect people who are on strike when they apply for SNAP. Only some strikers are subject to these rules.

You are not subject to the negative SNAP rules if:

- your former boss locked you out or permanently replaced you, *or*
- you are not on strike, but you cannot work because other workers are on strike or because you are afraid to cross a picket line, *or*
- you were "exempt" from the SNAP "voluntary quit" rules on the day before the strike. Common exemptions include if you are 60 or older, care for a young child, or an eligible college student. See **Question 56** for a full list of who is exempt.

If you have to meet the striker rules and are striking when you apply, you cannot get SNAP *unless* your income was low enough before you went on strike that you would have qualified for SNAP.

If your income was low enough to qualify, DTA will count either the value of your current monthly income or the value of your income before you went on strike to calculate the SNAP benefits for your household – whichever income amount is higher. [106 C.M.R. §361.240\(E\)\(2\)](#).

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON Online

Guide on this section.

60 What are the “ABAWD” work rules and 3-month time limit?

Massachusetts is required to implement a federal 3-month SNAP time limit for certain SNAP recipients who the Department of Transitional Assistance (DTA) identifies as “Able-Bodied Adults Without Dependents” (ABAWDs). DTA calls these rules the “ABAWD Work Rules.” Congress vastly expanded who has to meet the ABAWD work rules to keep SNAP in the July 2025 budget reconciliation bill, H.R.1.

The ABAWD work rules mean adults ages 18 through 64 may only receive 3 months of SNAP in a 36-month period *unless* they are exempt from *or* meeting certain work rules. See [106 C.M.R. §362.320](#). Note: As this Guide is published, DTA’s SNAP regulations have not been updated to include H.R.1’s changes.

Under federal SNAP rules, DTA SNAP workers must screen SNAP recipients for all exemptions **before starting the 3-month clock**. See **Question 61**. The screening happens during the application or recertification interview. During the screening, a SNAP worker must thoroughly review with the head of household all exemptions for every household member aged 18 through 64 who may be subject to the Work Rules. The head of household is the person whose name is on the case. If an adult qualifies for more than one exemption, DTA must apply the exemption that lasts the longest.

If DTA determines you or an adult in your household must meet the ABAWD Work Rules:

- The ABAWD can only get 3 full months of SNAP until January 1, 2027 (the end of the current 36 month period) - unless they tell DTA about an exemption, meet the work rules, or have a good reason they can’t meet the work rules.
- Many adults who are told they have to meet the ABAWD Work Rules are actually exempt! DTA may make mistakes when doing the screening, or the adult’s circumstances may change, making them exempt.
- DTA will send a series of notices telling the ABAWD about exemptions and what they need to do to keep SNAP after they have received one, two and three full months of SNAP. The first notice is called a *SNAP And Work* notice. During the third full month, DTA will send a termination notice.

61 Who is exempt from the ABAWD work rules?

Exemption Category	Specific Exemption
Age and Family Status	Under 18 or 65 or older
	Getting SNAP with a child under 14 <i>or</i> lives with a child under 14 who would be part of the SNAP household if they were eligible. For example, an excluded foster child or an undocumented child.
	Caring for a person who needs your care/is disabled, including if you provide care through the Adult Foster Care program. You do not need to live with this person or be related to them.
	Caring for a child under 6 years old - even if you are not living together or related.
Employment and Income	Earning \$217.50/week or more (i.e. working at least 14.5 hours/week at \$15/hour - the current minimum wage in MA).
	Or, if earning less than the minimum wage, working 30 or more hours/week (for example, farmworker or self-employed).
	Applied for or getting Unemployment benefits .
	Getting TAFDC cash benefits (for families with children under 18). Exempt even if child is age 14-18.
Education and Training	In any recognized school, training program, or college program (enrolled at least half time)
Health	Unable to work 30 or more hours/week due to short or long term health reasons (mental or physical) that make it hard for you to get or keep a job.
	Other factors that impact your health and ability to work.
	DTA assesses these factors as part of its screening for households who are homeless, or those who answer these questions on DTA's exemption form . DTA assesses inability to work based on the answers to these screening questions - these are not an “automatic” exemption.
	Pregnant

Many people are exempt from the work rules based on their age, earnings, a health condition, education and training and more. See [106 C.M.R. §362.320](#). The chart below guides you through the categories of exemptions. Be sure to tell DTA all of the exemptions that apply to you.

Health (continued)	Getting a disability benefit or payment, including but not limited to: • SSI • SSDI • EAEDC • Worker's compensation • Veteran's disability benefit • Short term disability • Paid Family Medical Leave (in most cases)
	Participating in a substance use treatment program
	Participating in a program run by • MassAbility (formerly MRC) • Mass. Department of Mental Health • Mass Commission for the Blind, Commission for the Deaf and Hard of Hearing, or Department of Developmental Services
Domestic Violence	Experienced domestic violence/intimate partner violence, stalking, harassment, or assault (health/safety concerns that impact ability to work)
Other Reasons	Alaska Native, or a member of an American Indian, Native American, Urban Indian, or California Indian tribe (or has a parent or grandparent who is a member).

Tell DTA as soon as possible about any exemption from the Work Rules by:

- **Filling out and sending in [DTA's form](#)** (for an exemption) or explaining the information to DTA in a written, signed statement (handwritten note is fine):
 - Online on DTAConnect.com or on the DTAConnect mobile app.
 - By mail: DTA Document Processing Center, P.O. Box 4406, Taunton, MA 02780-0420
 - By fax: (617) 887-8765
- **Calling** the DTA Assistance line at (877) 382-2363.
- **Going to a [local DTA office](#)** to speak with a SNAP worker or scan a document into your

case record.

If you are exempt based on income, send DTA proof of the income and hours of work. Otherwise, DTA only needs a self-declaration unless the statement is “questionable” (contradicts information DTA has).

Resources:

- MLRI’s [Guide for Community Organizations](#) on the ABAWD rules
- MassLegalHelp fliers: [MassLegalHelp.org/ABAWDWorkRules](https://www.masslegalhelp.org/ABAWDWorkRules)
- DTA’s [Work Rules for SNAP Clients webpage](#)

DTA Online Guide: See **Appendix G** for links to the DTA’s BEACON Users Guide for links to this section.

62 If I am not exempt, how do I meet the ABAWD work rules?

If DTA screened you for all exemptions and told you that you have to meet the ABAWD work rules, you can only get 3 months of SNAP until January 2027 unless you show DTA you are exempt, meet the rules below, or have a good reason you can’t meet them. For good cause reasons, see **Question 58**. The 36-month clock re-starts January 1, 2027.

Ways to meet the ABAWD work rules:

- *Working at least 20 hours a week on average – 80 hours per month.* This includes paid or unpaid work such as caring for a relative or neighbor or supervising their kids (if the person you are for is disabled or under 6, you are exempt. See **Question 61**). It also includes “in-kind” work for a landlord in exchange for rent.

Note: ABAWDs meeting the work rules through work must report to DTA by the 10th day of the following month if their hours go below 80 hours in

- *Participating in a DTA approved training or education activity* for at least 20 hours a week on average. See more about the [SNAP Path to Work](#) program below,
- *Doing a combination of training or education and paid or unpaid work totaling 20 hours/week on average, or*

- *Doing volunteer work, called “community service”* at a non-profit or government organization. The number of hours you need to do community service is determined by the amount of your SNAP grant divided by the state’s minimum wage (\$15/hour).

Note: ABAWDs can arrange their own community service/volunteer placement, or ask DTA for a referral. To do either, call the SNAP Path to Work Line at (888) 483-0255.

Example: James receives the max \$298/month SNAP. He needs to do 20 hours a month of volunteer or community service work.

Example: Samuel is 45 and unemployed. He is physically able to work but has not been able to find a job since he was laid off and his unemployment ran out. Samuel applied for SNAP in January. DTA screened him for all the exemptions, he does not meet any of them. DTA will only issue Samuel 3 full months of SNAP unless he shows DTA he is exempt from or meeting the Work Rules (or has a good reason not to meet them). After March 31st, Samuel must meet the Work Rules or show DTA he is exempt to get back on SNAP. After January 1, 2027 he can get back on because January 1, 2027 is a new 36-month clock in Massachusetts.

How to prove you meet the ABAWD Work Rules:

Ways to Meet the Work Rules	What to Send to DTA
<i>Employment</i>	<i>For paid work:</i> Verify income and the number of hours worked to DTA by submitting proof, such as pay stubs, a letter from the employer, or other proofs. <i>For In-Kind/Unpaid Work:</i> Send DTA proof such as a letter from the person the client is doing the unpaid work for with a description of the arrangement and the number of hours you worked. The proof does not need to be addressed to DTA.
<i>DTA Employment and Training Program</i>	Once connected to a program, fill out page one of the ABAWD Training Program Information Request form to authorize the release of program information to DTA. Program staff must fill out page two before it is sent to DTA.

<i>Volunteer/Community Service</i>	Once connected to community service, fill out page 1 of DTA's Work Program Participation Form. Page 2 must be filled out by staff at the community service site. Call (888) 483-0255 for help with volunteer sites. Or, submit any other official document from the site that states your total volunteer hours for the last month or if you haven't started volunteering yet, the number of expected hours.
------------------------------------	--

63 How do I get back on if my SNAP ended because of the ABAWD work rules?

There is no limit to how many times you can get back on SNAP if you qualify for one of the reasons listed. You can reapply for SNAP and show DTA any of the following:

- You are now exempt
- You worked a total of 80 hours in a month or volunteered the required number of hours in 30 days (while on or off SNAP),
- You will meet the work rules within a 30 days period (for example, if you have a job lined up and your shifts are about to start), or
- You had a good reason you could not meet the rules during one or more of the 3 months you got SNAP (see **Question 58**).

Anyone terminated from SNAP has the right to reapply - at any time.

If you met the work rules (when you were on or off SNAP) but used up your 3 months, you can get an additional 3 months of consecutive SNAP even if you are no longer meeting the work rules. You can get this special "second three months" one time in the 36-month period.

These "regaining SNAP" rules apply if you were on or off SNAP at the time you met the rules and even if the job or activity ended before you reapplied. [106 C.M.R. §362.320\(F\),\(H\)](#).

Example: Lee is an ABAWD. He is looking for work but could not find a job that would give him enough hours to earn \$217.50 per week (to show he is exempt) or give him 20 hours a week (to show he is meeting). He applies

for SNAP in July and gets 3 full months of SNAP in August, September, and October. He loses his SNAP on October 1 because he did not meet the rules for 3 months. In December, Lee gets a seasonal job that lasts just 30 days. Lee reapplies in January and shows DTA his pay stubs to prove he worked over 80 hours in December. Lee can get 3 more months of SNAP, giving him time to try to meet the work rules.

Example: Mary is an ABAWD who struggles to find work. She loses her SNAP in April, but starts volunteering at her local food pantry after relying on the pantry for food. She volunteers for 15 hours in June. She reapplies for SNAP in July and proves she volunteered 15 hours in June. Mary gets 3 more months of SNAP, giving her time to try to meet the work rules.

64 If my SNAP stops, how is SNAP calculated for the people I live with?

If you get SNAP with other people and you are cut off due to the ABAWD Work Rules, DTA will reduce your household's SNAP. DTA will remove you from the case.

If you have any income, DTA will count a “pro-rated” amount of your income against the other household members. The same thing is true if you are responsible for the rent or other countable expenses.

Example: Marie, age 50, and her 16-year-old daughter live together. Marie works 10 hours a week at her daughter's high school and earns \$150 gross/week. She is responsible for \$2,000 a month in rent. Marie is cut-off SNAP after 3 months. DTA applies 50% of her income and \$1,000 of the rent to her daughter's SNAP calculation.

Note: If Marie is not able to work more than 10 hours/week because she has a health issue (is exempt) or has a good cause reason, she should tell DTA. Or if Marie is able to increase her work hours enough to make \$217.50 per week, or meet the rules through volunteer work, she should become eligible again for SNAP and her household's SNAP will increase.

65 What is the SNAP Path to Work education and training program?

DTA works with many employment and training providers to offer job search, on-the-job training and training programs for SNAP recipients. These services are offered through DTA's "SNAP Path to Work" program.

Any SNAP recipient age 16 or older can volunteer for a SNAP E&T program. [106 CMR §362.310\(B\)](#). If you are approved, you do not need to pay for the training program. You can enroll and participate for free.

Plus, if you are doing an employment and training program through DTA, DTA will provide money for transportation and connect you to a voucher for free childcare if you have children.

The SNAP Path to Work providers should be able to:

- Help you update your resume,
- Help you develop interview skills or look for work,
- Offer to enroll you in education programs that include English as a second language, Adult Basic Education or GED,
- Offer to enroll you in a community college or other certificate program to help you get a specific skill, and
- Help you build other job skills.

To learn more and find a program, visit SNAPPathToWork.org

DTA Online Guide: See **Appendix G** for links to the DTA's BEACON Online Guide for this section.